



CHAPTER lxxxviii.

An Act to confirm a Provisional Order under the Land Drainage Act 1861 in the matter of a proposed drainage district in the parishes of Raveningham Norton Subcourse Thurlton Loddon Chedgrave and Reedham. A.D. 1915.

[29th July 1915.]

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Act 1861:

24 & 25 Vict.
c. 133.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Land Drainage (Raveningham) Provisional Order Confirmation Act 1915. Short title.

[Ch. lxxxviii.] *Land Drainage (Raveningham)* [5 & 6 GEO. 5.]
• *Provisional Order Confirmation Act, 1915.*

A.D. 1915.

S C H E D U L E.

LAND DRAINAGE ACT 1861.

PROVISIONAL ORDER.

*In the matter of a proposed Drainage District in the parishes
of Raveningham Norton Subcourse Thurlton Loddon
Chedgrave and Reedham in the county of Norfolk.*

1. The Board of Agriculture and Fisheries in pursuance of the powers vested in them by the Land Drainage Act 1861 and the Board of Agriculture and Fisheries Acts 1889 to 1909 do by this Provisional Order constitute the lands shown on a plan sealed by the Board and therein coloured pink a separate drainage district under the Land Drainage Act 1861:

2. And they do further by this their Provisional Order make the following regulations with respect to the Drainage Board (that is to say):—

(A) The Drainage Board for the said district shall consist of twelve members and shall be styled “the Raveningham Norton Subcourse and Thurlton Drainage Board”:

(B) The following persons shall be members of the first Drainage Board:—

Nicholas Henry Bacon of Raveningham Hall in the county of Norfolk;

John Evans Bidwell of Cambridge in the county of Cambridge;

Benjamin Burgess of Howe in the said county of Norfolk;

Edward Burgess of Brooke in the said county of Norfolk;

James Carver of Ashby St. Mary in the said county of Norfolk;

George Walter Cannell of Hardley in the said county of Norfolk;

Michael Falcon of Horstead Norwich in the said county of Norfolk;

John Hayward Mack of Rockland St. Mary in the said county of Norfolk;

Martin Nockolds of Saffron Walden in the county of Essex;

Frederick Rushmer of Thurlton in the said county of Norfolk;

[5 & 6 GEO. 5.] *Land Drainage (Raveningham) [Ch. lxxxviii.]*
Provisional Order Confirmation Act, 1915.

George Daniel Spence of Kenninghall Thetford in the A.D. 1915.
said county of Norfolk; and

John Wharton of Thurlton aforesaid:

- (c) The first meeting of the Drainage Board shall be summoned by a notice under the hands of any two or more members of the Drainage Board which shall be published in some newspaper circulating in the said district and shall be posted at the principal entrance doors of the places of public worship or at other places where notices are usually exhibited in the said parishes of Raveningham Norton Subcourse Thurlton Loddon Chedgrave and Reedham at least fourteen days before the day of meeting:
- (d) The qualification of any subsequent member of the Drainage Board shall be that he shall be (1) the proprietor of not less than ten acres of land within the said district or (2) the heir apparent of a proprietor (such proprietor not being himself a member of the Board) of not less than ten acres of land within the said district or (3) the occupying tenant yearly or otherwise of not less than twenty acres of land within the said district or (4) the agent of a proprietor of not less than ten acres of land within the said district such agent acting under a written appointment and his principal not being a member of the Board:
- (e) The members of the first Drainage Board shall vacate their offices on the first Thursday in September in the year following that in which this Provisional Order shall have been confirmed by Parliament:
- (f) The electors for members of the Drainage Board shall be the persons who were during the year immediately preceding such election liable to be rated to any drainage rate of the said district leviable by the Drainage Board and have paid all such rates (if any) levied and due from them at the time of such election:
- (g) This Order shall not in anywise take away affect prejudice or diminish any rights interests powers or jurisdiction of the Commissioners of Sewers for the Eastern Hundreds of Norfolk or any rights interests powers or jurisdiction of the commissioners for drainage appointed in pursuance of an Act passed in the forty-ninth year of the reign of His Majesty George the Third Chapter XLIV. and intituled "An Act for inclosing and draining Lands in the Parishes of Thurlton Haddiscoe and Thorpe next Haddiscoe in the county of Norfolk":

[Ch. lxxxviii.] *Land Drainage (Raveningham)* [5 & 6 GEO. 5.]
Provisional Order Confirmation Act, 1915.

A.D. 1915.

(H) This Order shall not in anywise take away affect prejudice or diminish the right of the commissioners for drainage appointed in pursuance of an Act passed in the fifty-seventh year of the reign of His Majesty George the Third Chapter XXXVIII. and intituled "An Act for inclosing
" Lands within the Parishes of Norton and Heckingham in
" the County of Norfolk and for draining certain Lands in
" the said Parish of Norton" to run the water from the drainage level of the said commissioners into and through their outfall drain marked Number 179 on the map annexed to the award made in pursuance of the said Act but not so as to flood or damage the lands constituted a separate drainage district under this Order and so that if and so often as the running of such water causes damage to the lands in the said drainage district or causes expense to the Drainage Board constituted in pursuance of this Order the said commissioners shall pay to the said Drainage Board therefor such a sum as the said commissioners and the said Drainage Board shall agree upon or in default of such agreement as shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 or of any statutory modification or re-enactment thereof for the time being in force.

3. Notwithstanding anything in this Order contained the consent of the Treasury shall during the continuance of the present war and twelve months thereafter be required in addition to any other consent for the exercise of any power of borrowing for the purposes of this Order.

4. For the purposes of any rate to be levied by the Drainage Board the lands within the said district belonging to the Great Eastern Railway Company shall not be assessed on the basis of a higher value than that of the lands immediately adjacent thereto.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this thirteenth day of May nineteen hundred and fifteen.

(L.S.)

(Signed)

SYDNEY OLIVIER

Secretary.

Printed by EYRE and SPOTTISWOODE, LIMITED,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LIMITED, 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LIMITED, 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LIMITED, LONDON, W.C.